

## **Deposition of Naomi Voss — appearance and supervisory role**

Q. Please state your position and the date of this deposition.

A. I am Blue Cedar's operations director for audit management. I am testifying on October 7, 2025. During the events in question I directly supervised Leora Benton, Tessa Wynn, Omar Ibarra, and Calvin Keene. Draven Pike was the vice president for operations above me.

Q. What did your supervisory work include?

A. I reviewed manager performance, assigned portfolios, validated source information used in planning, and participated in the March reduction-in-force calibration. I could recommend score changes and coverage arrangements. I did not set the finance target and did not have final authority to approve the manager selected for termination.

Q. Who had final authority?

A. Pike. Mira Solis maintained the human-resources records and raised compliance questions, and Sable Finch checked the savings calculations. I supplied information and proposed several adjustments. Because my input affected the comparison, I understand that my actions are relevant even though Pike signed the final approval.

# Benton's performance before the RIF

Q. How did you evaluate Benton before 2025?

A. I rated her “exceeds expectations” in 2022 and 2023 and “strong performer” in 2024. She was particularly good at organizing evidence, coaching teams, and reviewing difficult remediation issues. She closed forty-seven of fifty audits on time in 2024, with two client-document holds and one internal staffing delay.

Q. Did she have discipline or an attendance warning?

A. No. She had no performance-improvement plan, disciplinary action, or attendance warning. Her December 19 travel decline was caused by a scheduled client closeout I had approved. I did not write that she was generally unwilling to travel.

Q. Was there a client-confidence complaint?

A. No contemporaneous complaint appears in the records I maintained. Northline rated her team 4.7 of 5 and asked her to remain through the June handoff. Oriole rated the team 4.5. When client confidence appeared in Pike's July explanation, I understood it as his description of continuity risk, not a negative report I had received about Benton.

# January 17 opposition

Q. Did you receive Benton's January 17 email?

A. Yes. She sent it to Solis and me. She said recorded lead assignments appeared sex-based, identified Lantern, Hearth, and Juniper, and asked the company to review the assignment data and pause reliance on the lead total.

Q. How did you understand the concern?

A. I understood her to be raising possible sex discrimination, not merely requesting a favored client. My internal forward to Solis said, "Leora is expressly raising sex discrimination in how lead credit is assigned." I attached the 2024 export and noted that some rows identified one manager as planner and another as lead.

Q. Did you treat the email as insubordination or poor performance?

A. No. I acknowledged it, forwarded it to human resources, and kept the current assignments in place while the review began. I did not issue discipline. On January 29 I attended the meeting where Benton asked that any staffing review use actual work rather than only the recorded lead field, and I agreed the data required reconciliation.

# Employee-relations controls and knowledge

Q. What did Solis tell you after opening ER-25-014?

A. She said the anti-retaliation policy required human-resources review of a proposed change to Benton's role, score, pay, schedule, or employment during the ninety-day period. She asked that I preserve assignment, review, and message records and provide information for the assignment audit.

Q. Did you know before March that Benton had pursued the matter with an agency?

A. By the time of calibration I knew there was an agency matter and a records hold. I did not receive the full routing packet directly, but the February preservation instructions identified Benton and expanded the records to be kept. Pike and Solis handled the response routing.

Q. Was protected activity supposed to affect a RIF score?

A. No. It was not one of the five criteria. The employee-relations flag was supposed to prompt review, not produce points. At the March 4 meeting Solis reminded us not to use protected activity as a criterion. My position is that I proposed changes based on coverage, but I understood why the timing and consistency of my proposals would be examined.

# Source validation and imported values

Q. What was your role in validating manager data?

A. I checked that the employees and assignments were correctly associated with my group. The source systems provided completion results, transition dates, credentials, and travel history. The written protocol said supervisors could validate the sources but could not alter the read-only import without a recorded calibration entry.

Q. What were the initial totals?

A. Benton had 84, Wynn 76, Keene 74, and Ibarra 73. Benton had 27 completion points, 22 continuity, 14 credentials, 12 availability, and 9 uniqueness. Her completion result reflected forty-seven timely matters, and her availability source reflected twenty-eight completed travel days.

Q. Did you identify a new source-system error in Benton's data?

A. No. I did not find a missed audit, expired credential, or corrected travel count. The changes I later proposed were judgments about forward coverage and transferability. They were entered in the version log rather than substituted into the original source records. The imported values remained available for comparison.

# March 4 review and March 7 reductions

Q. What did you say at the March 4 meeting?

A. Pike asked whether Benton had to remain on Northline and Oriole through June. I said the work was significant but could be handed off. We also discussed Keene's automation library and Ibarra's possible summer travel. No manager was selected that day.

Q. What did you propose on March 7?

A. I proposed reducing Benton's continuity from 22 to 14 because Wynn and Ibarra could accept Northline and Oriole. I also proposed reducing availability from 12 to 6 based on the December short-notice decline. Solis asked whether the completed-travel record supported such a large change.

Q. Did you ask Benton for her explanation first?

A. No. I relied on schedules and my recollection. In retrospect, I knew the December decline involved a client closeout I had approved, and Benton's transitions continued beyond Wynn's. Pike approved both reductions, saying forward coverage should receive greater weight than historical volume. I entered the changes; no new quantitative source accompanied them.

# Comparator credits

Q. How was Wynn's continuity score handled?

A. It increased from 20 to 22 for the Lantern transition scheduled through May 30. I described Lantern as relationship sensitive. I cannot identify a written client demand that Wynn personally remain, although maintaining continuity was a management preference.

Q. How was Ibarra's availability handled?

A. His score increased from 9 to 14 based on his February 27 statement that he would take more second-quarter travel. He had completed sixteen travel days, fewer than Benton. The group treated future willingness as important for summer coverage.

Q. And Keene's automation work?

A. His uniqueness rose from 14 to 15 because he maintained the reporting-script library. We had not prepared a formal estimate of how long a transfer would take, and the library was accessible to the manager group. Solis flagged all three comparisons: transition timing, future versus completed travel, and the missing transfer estimate. I did not provide her a separate written source that eliminated those differences.

# Final calibration and redistribution

Q. What occurred at the March 14 meeting?

A. Benton's uniqueness score fell from 9 to 7 because the group decided Keene and I could divide her remediation-review responsibilities. Keene's uniqueness increased to 15 at the same meeting. The final manager totals were Benton 68, Wynn 78, Ibarra 78, and Keene 75.

Q. Did you choose the final savings scenario?

A. No. I said I could administer a coverage arrangement, and Pike chose among the scenarios. He approved B-7 on March 21. Finance had confirmed that more than one combination could reach the target when the archive-hosting consolidation was included.

Q. What happened to Benton's duties?

A. On March 25 I assigned Northline to Wynn, Oriole to Ibarra, and the remediation queue to Keene. I assumed the monthly quality meeting. I told the recipients to describe Benton's departure as organizational alignment, not a quality concern. No replacement audit-manager position was created, but each underlying client or review function continued with a new owner.



# Contingency discussion with Wynn

Q. Before Benton's termination, did you ask Wynn whether she could take Northline?

A. Yes. During early-March coverage work, I asked whether she could handle Northline if a manager position were removed. She said she could, with transition time because Lantern remained active. The question helped me assess whether a staffing scenario was operationally possible.

Q. Did you tell Wynn that Benton's internal complaint or agency activity was a reason for the possible removal?

A. No. I did not connect the contingency question to Benton's employee-relations matter or agency activity. My explanation is that I was testing coverage while the RIF scenarios were being developed.

Q. Did you tell Wynn that Pike wanted Benton removed because of a complaint?

A. No. Pike did not give me such an instruction, and I did not convey one. I discussed the possibility of a manager reduction and the work Wynn might receive. I recognize that the conversation occurred while I also knew of the employee-relations review, but I deny saying that the protected activity supplied the reason for the coverage question.

# Termination account, later explanations, and corrections

Q. What was Benton told on March 24?

A. The company told her there was a payroll target and that her management responsibilities could be redistributed. The written letter used budget savings and redundancy. Neither I nor the letter criticized her performance, availability, or client relationships during that meeting.

Q. Did your explanation later change?

A. In the July 8 interview I continued to say Benton's performance was satisfactory and that the December conflict was the only availability event I recalled. Pike listed salary, redundancy, completion, willingness to travel, and client confidence. I did not supply him a contemporaneous client complaint.

Q. What materials support your testimony?

A. The annual reviews, January emails, policy, scorecards, calibration minutes, schedules, and March 25 redistribution message. I personally wrote or participated in several of them and relied on the produced records for exact values.

Q. Any corrections?

A. The agency packet open event occurred February 11, while the calendar meeting occurred February 12. The workbook's April 1 date was a payroll-model date; Benton's termination was effective March 24. I make no other substantive correction.